

Short title,
citation, extent
and
commence-
ment.

3.—(1) This Act may be cited as the Industrial and Provident Societies Act, 1952, and the Industrial and Provident Societies Acts, 1893 to 1928, and this Act may be cited together as the Industrial and Provident Societies Acts, 1893 to 1952.

(2) This Act shall not extend to Northern Ireland and shall extend to the Channel Islands.

(3) This Act shall come into force one month after the date on which it is passed.

CHAPTER 18

An Act to confer certain immunities on the representatives in the United Kingdom of Commonwealth countries and the Republic of Ireland, and of the states and provinces of any of those countries, and on members of the staffs of such representatives, and on the families of such representatives and of members of their staffs, and on other persons in the service of the governments of those countries; and for purposes connected with the matters aforesaid. [27th March 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Immunities of
representatives
of Common-
wealth
countries and
Republic of
Ireland and
certain other
persons.

1.—(1) Subject to the provisions of this section—

- (a) a person for the time being recognised by Her Majesty's Government in the United Kingdom as the chief representative in the United Kingdom of any country to which this section applies, whether he is known by the title of High Commissioner for that country or by any other title, (in this section referred to as "a chief representative"), shall be entitled to the like immunity from suit and legal process, and the like inviolability of residence, official premises and official archives as are accorded to the envoy of a foreign sovereign Power accredited to Her Majesty;
- (b) such members of the official staff of a chief representative as are performing duties substantially corresponding to those performed by members of the official staff of an envoy of a foreign sovereign Power shall be entitled to the like immunity from suit and legal process as is accorded to members of the official staff of such an envoy;

- (c) members of the family of a chief representative or of a member of the official staff of a chief representative entitled to immunity under the last preceding paragraph shall be entitled to immunity from suit and legal process to the like extent as members of the family of such an envoy or, as the case may be, of a member of the official staff of such an envoy; and
- (d) members of the domestic staff of a chief representative shall be entitled to the like immunity from suit and legal process as is accorded to members of the domestic staff of such an envoy:

Provided that a person who is a member of the official or domestic staff of the chief representative of any country, and is a citizen of the United Kingdom and Colonies and is not a citizen of that country, shall not be entitled under this subsection to immunity from suit and legal process, except in respect of things done or omitted to be done in the course of the performance of his duties, and the members of his family shall not, as such, be entitled to any immunity from suit and legal process.

(2) Her Majesty may by Order in Council confer—

- (a) on persons in the service of the Government of any country to which this section applies (other than persons on whom immunity is conferred by the preceding subsection) holding such offices or classes of offices as may be specified in the Order, being offices or classes of offices appearing to Her Majesty to involve the performance of duties substantially corresponding to those which, in the case of a foreign sovereign Power, would be performed by a consular officer,
- (b) on a person for the time being recognised by Her Majesty's Government in the United Kingdom as the chief representative in the United Kingdom of any state or province of any country to which this section applies (in this section referred to as "a state representative"),
- (c) on members of the staff of a state representative holding such offices or classes of offices as may be specified in the Order, being offices or classes of offices appearing to Her Majesty to involve the performance of duties substantially corresponding to those which, in the case of a foreign sovereign Power, would be performed by a consular officer,

the like immunity from suit and legal process and the like inviolability of official archives as are accorded to consular officers of a foreign sovereign Power, and the Order in Council may provide for applying, in relation to official premises of

12, 13 & 14
 Geo. 6. c. 29.

persons on whom immunity is conferred under this subsection, the provisions of subsection (1) of section four of the Consular Conventions Act, 1949 (which restricts powers of entry in relation to consular offices) as if those premises were consular offices of a State to which that section applies and those persons were consular officers.

(3) If in any proceedings any question arises whether or not any person is entitled to immunity from suit and legal process under any provision of this section or of any Order in Council made thereunder, a certificate issued by or under the authority of the Secretary of State stating any fact relevant to that question shall be conclusive evidence of that fact.

(4) The Secretary of State shall compile a list of the persons appearing to him to be entitled to immunity from suit and legal process under subsection (1) of this section, except children under the age of eighteen of a person so entitled and persons whose immunity is limited by the proviso to that subsection, and the Secretary of State shall from time to time amend the list and shall cause the list and any amendment of the list or any amended list to be published in the London, Edinburgh and Belfast Gazettes.

(5) Notwithstanding anything in the preceding provisions of this section—

- (a) a chief representative may waive any immunity conferred by or under this section on himself or on a member of his staff, or on a member of his family or of the family of a member of his staff, or on a person in the service of the Government of the country which he represents;
- (b) a state representative may waive any immunity conferred under this section on himself or on a member of his staff.

(6) The countries to which this section applies are Canada, Australia, New Zealand, the Union of South Africa, India, Pakistan, Ceylon, Southern Rhodesia, and the Republic of Ireland.

Power to
 extend section
 one to other
 Common-
 wealth
 countries, and
 to exclude
 countries
 refusing
 reciprocal
 treatment.

2.—(1) Her Majesty may by Order in Council provide for including among the countries to which the preceding section applies any country specified in the Order, being a country within the Commonwealth.

(2) Her Majesty may by Order in Council provide that the preceding section shall cease to apply to, or shall be modified in its application to, any country on the ground that that country is failing to accord corresponding treatment to the United Kingdom.

3.—(1) Any Order in Council made under section one of this Orders in Act shall be subject to annulment in pursuance of a resolution Council. of either House of Parliament.

(2) No recommendation shall be made to Her Majesty in Council to make an Order under the last preceding section unless a draft thereof has been laid before Parliament and approved by resolution of each House of Parliament.

(3) Any power conferred by the foregoing provisions of this Act to make an Order in Council, except the power conferred by subsection (1) of the last preceding section, shall be construed as including a power to revoke or vary the Order in Council by a subsequent Order in Council.

4. This Act shall not affect any legal proceedings begun Saving for pending proceedings. before the commencement of this Act.

5.—(1) This Act may be cited as the Diplomatic Immunities Short title, (Commonwealth Countries and Republic of Ireland) Act, 1952. commencement and extent.

(2) This Act shall come into operation on such date as Her Majesty may by Order in Council appoint.

(3) It is hereby declared that this Act extends to Northern Ireland.

CHAPTER 19

An Act to confer a further borrowing power on the Receiver for the Metropolitan Police District and determine certain of his existing borrowing powers.
[30th April 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In addition to any sums which he has power to borrow Power of the by virtue of the Metropolitan Police (Borrowing Powers) Act, Receiver to borrow 1935, the Receiver for the Metropolitan Police District, with the £5,000,000. approval of the Secretary of State, may, for the purpose of any purchase or works under the Metropolitan Police Acts, 1829 to 1946, required for the Metropolitan Police Force, borrow on the security hereinafter mentioned sums not exceeding in the aggregate five million pounds.